



## CHAPTER cxli.

An Act to confer further powers upon the lord mayor  
aldermen and citizens of the city of Leeds in regard  
to their tramways undertaking to empower them to  
construct street improvements and for other purposes.

A.D. 1914.

[7th August 1914.]

**W**HEREAS it is expedient to empower the lord mayor  
aldermen and citizens of the city of Leeds (in this Act  
called "the Corporation") to construct the street improvements  
referred to in this Act:

And whereas the Corporation own and work tramways within  
and beyond the city and also own and work mechanically propelled  
vehicles adapted for use upon roads and moved by electrical  
power transmitted thereto by some external source (in this Act  
called "trolley vehicles") upon the route within the city men-  
tioned in the Leeds Corporation Act 1910 and it is expedient  
to empower the Corporation to construct the additional tram-  
ways mentioned in this Act and to use trolley vehicles upon the  
routes therein mentioned and to confer further powers upon the  
Corporation with reference to the provision and use of motor  
omnibuses :

And whereas Tramway No. 6 authorised by this Act will be  
situate partly in the city and partly in the rural district of  
Hunslet and the council of that district have consented to the  
exclusion of section 43 of the Tramways Act 1870 :

And whereas Tramway No. 8 which will be situate in the  
urban district of Guiseley will be an extension of Tramway  
No. 1 authorised by the Leeds Corporation Act 1908 and by an  
agreement confirmed by that Act and made between (amongst  
others) the Corporation and the Guiseley Urban District Council



A.D. 1914. — it was agreed that the provisions of section 43 of the Tramways Act 1870 should not apply to the last-mentioned tramway when constructed :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows :—

|                                                                                                                                                                                                                        |         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|
| For the construction of street improvements authorised by this Act - - - -                                                                                                                                             | £ 2,702 |
| For the construction of the tramways authorised by this Act and other purposes of the tramways undertaking of the Corporation other than the provision of motor omnibuses -                                            | 60,012  |
| For the provision of the trolley vehicles authorised by this Act - - - -                                                                                                                                               | 12,000  |
| For the provision of the electrical equipment and the construction of the other works necessary for the tramways and trolley vehicles authorised by this Act - - - -                                                   | 28,562  |
| For the purchase of land for and the erection of a sub-station and dépôt for the purposes of the tramways and trolley vehicles of the Corporation and the provision of plant and cables in connexion therewith - - - - | 42,636  |

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the



West Riding of the county of York and are herein-after A.D. 1914.  
respectively referred to as the deposited plans sections and book  
of reference : —

May it therefore please Your Majesty that it may be enacted  
and be it enacted by the King's most Excellent Majesty by and  
with the advice and consent of the Lords Spiritual and Temporal  
and Commons in this present Parliament assembled and by the  
authority of the same as follows (that is to say) :—

## PART I.

### PRELIMINARY.

1. This Act may be cited as the Leeds Corporation Act 1914 and the Leeds Corporation Acts 1901 to 1913 and this Act may be jointly cited as the Leeds Corporation Acts 1901 to 1914. Short and collective titles.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act :— Incorporation of Acts.

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

(2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) Part II. and Part III. (except section 43 relating to the future purchase of the undertaking by the local authority) of the Tramways Act 1870 Provided that the words in section 19 of that Act “but nothing in this Act contained shall  
“authorise any local authority to place or run car-  
“riages upon such tramway and to demand and take  
“tolls and charges in respect of the use of such  
“carriages” shall not apply to the Corporation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

The expressions “the Corporation” “the city” “the city fund” “the city rate” and “statutory security” have the meanings assigned to them respectively by section 4 (Interpretation) of the Consolidation Act 1905 ;



A.D. 1914. — “The General Powers Act 1901” means the Leeds Corporation (General Powers) Act 1901;  
 “The Consolidation Act 1905” means the Leeds Corporation (Consolidation) Act 1905;  
 “The Act of 1907” means the Leeds Corporation Act 1907;  
 “The Act of 1908” means the Leeds Corporation Act 1908;  
 “The Act of 1910” means the Leeds Corporation Act 1910;  
 and  
 “The Act of 1913” means the Leeds Corporation Act 1913.

## PART II.

### STREET IMPROVEMENTS.

Power to  
make street  
improve-  
ments.

4. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvements herein-after mentioned together with all necessary approaches junctions abutments embankments arches steps sewers drains culverts works and conveniences connected therewith or incidental thereto.

The works herein-before referred to and authorised by this section will be situate in the city and are as follows:—

Street Work No. 1 A widening of Nippet Lane on the southern side thereof commencing at its junction with Burmantofts Street and Springfield Road and terminating at its junction with Accommodation Road:

Street Work No. 2 A widening of Mill Green on the north-easterly side thereof commencing at the southerly corner of the premises numbered 9 in Mill Green and extending for a distance of 25 yards in a southerly direction:

Street Work No. 3 A widening of Mill Green on the south-westerly side thereof commencing at a point about 21 yards measured in a westerly direction from the westerly corner of the junction of Mill Green and Wortley Lane and terminating at the northerly side of the foot-path leading from Mill Green to Danube Road.

Limits of  
deviation.

5. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the



limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. A.D. 1914.

### PART III.

#### TRAMWAYS TROLLEY VEHICLES AND OMNIBUSES.

6.—(1) The Corporation may subject to the provisions of this Act construct and maintain in accordance with the deposited plans and sections the tramways herein-after described with all proper rails plates sleepers channels junctions turntables turn-outs crossings passing places posts poles brackets wires stables carriage-houses engine-houses sheds buildings works and conveniences connected therewith: Construction of tramways.

Provided that nothing in this Part of this Act or in any Act wholly or in part incorporated therewith shall authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 (Power of undertakers to alter position of wires and pipes) of the former Act apply except in accordance with and subject to the provisions of that section.

(2) The tramways authorised by this Act are as follows:—

Tramway No. 1 (5 furlongs 6·83 chains in length whereof 1 furlong 3·00 chains will be double line and 4 furlongs 3·83 chains will be single line) to be situate in the city commencing in Burmantofts Street by a junction with the existing tramway in that street at its junction with Nippet Lane proceeding along Nippet Lane Stoney Rock Lane and Stanley Road and terminating in Compton Road by a junction with the existing tramway in that road at a point 23 yards north-east of Stanley Road:

Tramway No. 2 (1 mile 2 furlongs 3·30 chains in length whereof 7 furlongs 9·77 chains will be double line and 2 furlongs 3·53 chains will be single line) to be situate in the city commencing in York Road by a junction with the existing tramway in that road at its junction with Pontefract Lane proceeding along Pontefract Lane East Park Road Victoria Avenue Pontefract Lane and Cross Green Lane and terminating in that lane by a junction with Tramway No. 2 authorised by the Act of 1907 at the junction of Lawrence Street with Cross Green Lane:



A.D. 1914.  
—

Tramway No. 3 (4 furlongs 1·66 chains in length whereof 4 furlongs 0·66 chain will be double line and 1·00 chain will be single line) to be situate in Dewsbury Road in the city commencing by a junction with the existing tramway in that road nearly opposite to the westerly wall of Cross Flatts Park and terminating at the junction of Dewsbury Road with Old Lane:

Tramway No. 4 (double line 1 furlong 7·42 chains in length) to be situate in the city commencing in Bishopgate Street by a junction with the existing tramways in that street at a point 77 yards north-west of the junction of Mill Hill with Swinegate proceeding into and along Swinegate and terminating in Lower Briggate at a point 22 yards south of the junction of Swinegate with Lower Briggate:

Tramway No. 4A (double line 1·50 chains in length) to be situate in the city commencing in Swinegate by a junction with Tramway No. 4 authorised by this Act at a point 17 yards west of Lower Briggate and terminating by a junction with the existing tramway in Lower Briggate at a point 17 yards north of Swinegate:

Tramway No. 5 (9·42 chains in length whereof 7·92 chains will be double line and 1·50 chains will be single line) to be situate in the city commencing in Sovereign Street by a junction with the existing tramway in that street at the junction of the westerly and north-easterly portions of Sovereign Street proceeding along Sovereign Street and terminating in Swinegate by a junction with Tramway No. 4 authorised by this Act at a point 45 yards south-west of the junction of Swinegate and Lower Briggate:

Tramway No. 6 (7 furlongs 3·15 chains in length whereof 3 furlongs 2·54 chains will be double line and 4 furlongs 0·61 chain will be single line) to be situate in the city and in the township of Templenewsam in the rural district of Hunslet commencing in York Road by a junction with the existing tramway at a point nine and two-thirds yards west of Selby Road proceeding into and along Selby Road and terminating therein at a point 23 yards east of Chapel Street:



Tramway No. 7 (6 furlongs 7·80 chains in length whereof 6 furlongs 6·80 chains will be double line and 1·00 chain will be single line) to be situate in York Road in the city commencing by a junction with the existing tramway at a point 8 yards east of Selby Road and terminating at a point opposite to the bridle path to Crossgates: A.D. 1914.

Tramway No. 8 (4 furlongs 7·45 chains in length whereof 4 furlongs 6·45 chains will be double line and 1·00 chain will be single line) to be situate in Otley Road in the urban district of Guiseley commencing at the termination of the existing tramway at Victoria Road and terminating at the boundary of the said district of Guiseley at the junction of Otley Road with Bradford Road.

(3) Provided that the Corporation shall not open for public traffic so much of Tramway No. 1 as will be situate between the commencement of that tramway and the junction of Nippet Lane with Accommodation Road until they have executed Street Work No. 1 authorised by this Act.

7. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing such tramways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of works.

8.—(1) The powers and provisions with regard to tramways contained in the Consolidation Act 1905 and in section 7 (Use of tramway posts by Postmaster-General) of the Leeds Corporation Tramways Order 1907 shall apply to the tramways authorised by this Act as if such tramways had been Corporation tramways as defined in the Consolidation Act 1905. Application of provisions of Act of 1905 and of Order of 1907 to tramways.

(2) Provided that no post or other apparatus shall be erected on any carriageway in connexion with the tramways authorised by this Act except with the consent of the Board of Trade.

(3) Provided also that nothing in this Act shall be deemed to authorise the affixing of stays posts brackets wires or other apparatus to any bridge the property of the North Eastern Railway Company or of the North Eastern and London and North Western Railway Companies without their previous consent.



A.D. 1914.

For protec-  
tion of West  
Riding  
County  
Council.

9. The following provisions for the protection of the county council of the West Riding of Yorkshire (in this section called "the county council") shall unless otherwise agreed in writing apply and have effect with respect to the construction of Tramway No. 6 on the Leeds and Selby main road in the township of Templenewsam and Tramway No. 8 on the Kirkstall Otley and Shipley main road in the urban district of Guiseley (that is to say):—

(1) In this section "tramway" means the said Tramways No. 6 and No. 8 respectively unless the context otherwise requires:

(2) (a) The tramway shall not be constructed or (after construction) doubled until the said roads have to the satisfaction of the county council been widened so that the metalled carriageway shall be of not less width than 33 feet where a double line is to be constructed and not less than 27 feet where a single line is to be constructed and a footpath or footpaths shall be provided of the same width as the existing footpath or footpaths. Provided that the Corporation shall not be required to carry out such widenings to any greater extent than can be effected by utilising any unmetalled ground or grass verge at the sides of the said roads;

(b) Such widenings may at the request and cost of the Corporation be executed by the county council;

(c) If the Corporation carry out such widenings and footpaths they shall form with proper foundations and pave or macadamise and otherwise make up the added portions and make proper provision for the drainage and otherwise complete the said widenings and footpaths as required by and to the satisfaction of the county council and in conformity with plans sections and specifications to be approved by the county council. Provided that if the county council do not within twenty-eight days after receipt by them of such plans sections and specifications signify their approval or disapproval thereof or give their directions in relation thereto they shall be deemed to have approved thereof:

(3) Before commencing to construct the tramway in the said roads the Corporation shall deliver to the county



council a plan showing the proposed position thereof in the road If the county council have any objection to the construction of the tramway in accordance with such plan they shall give notice thereof in writing to the Corporation and if the county council and the Corporation are unable to agree as to the said plan any difference between them shall be determined as herein-after provided Provided that if the county council do not give such notice within twenty-eight days after receiving the said plan they shall be taken to have agreed thereto: A.D. 1914.

- (4) The position of all posts standards boxes and their several attachments erected by the Corporation in the said road shall be such as the county council may (subject in case of difference to determination by the Board of Trade or an arbitrator appointed by that Board as herein-after provided) reasonably approve Provided that—

(a) If before the erection of any such posts standards boxes and attachments the Corporation deliver to the county council a plan showing the proposed position thereof and the county council do not within fourteen days give notice to the Corporation of any objection the county council shall be taken to have agreed to the position of such posts standards boxes and attachments as shown by the said plan;

(b) If any post box or overhead wire becomes owing to any road widening alteration or improvement or to the construction of any new road or otherwise in the opinion of the county council an obstruction the Corporation shall alter the position thereof in such manner as the county council direct but if the Corporation object to any such direction a difference shall be deemed to have arisen between them which shall be determined in manner provided by subsection (12) of this section:

- (5) The Corporation shall pave the portion of road referred to in section 28 of the Tramways Act 1870 with such granite or other sett paving material as may be reasonably approved by the county council:



A.D. 1914.

(6) (a) Where any margin of the carriageway less than six feet six inches in width exists at either side of the tramway track between the edge of such tramway track and the kerb of the footpath or the fence or boundary as the case may be of the road the Corporation shall if required by the county council pave such margin or margins and the cost of such paving shall be borne in equal shares by the Corporation and the county council;

(b) The said portions of the road so paved as aforesaid shall thereafter be maintained by the authority liable for the maintenance of main roads in the district;

(c) "Tramway track" means so much of the road whereon the tramway is laid as lies between the rails of the tramway and (where double lines are laid) the portion of the road between each tramway and in every case so much of the road as extends eighteen inches beyond the rails of and on each side of the tramway:

(7) The Corporation shall put down at their own cost at such places along the tramway as may be necessary suitable grids or drains and drain boxes to properly drain the track and prevent the accumulation of water thereon:

(8) The Corporation shall at all times during the construction or reconstruction repair or renewal of the tramway or any part thereof in the said roads make all necessary and reasonable provisions for the proper regulation of the ordinary traffic of the road and shall keep unobstructed so much of such roads as the surveyor of the district council shall reasonably deem adequate for the free and safe passage thereon of vehicles and foot passengers and shall after the completion of such construction or reconstruction restore the surface of that portion of the road so required to be kept unobstructed to a condition of repair equal to that in which the same was prior to the commencement of the works:

(9) If in consequence of the construction or working of the tramway it becomes necessary to raise strengthen or reconstruct with suitable foundations any portion of the



said road opposite the Willow Well Farm at Temple-newsam or to adjust in level or otherwise any such portions of the said road or any footpath or other work or to strengthen any of the retaining walls near White Bridge the cost of executing such work shall be borne by the Corporation :

A.D. 1914.

- (10) The provisions of section 7 (For protection of West Riding County Council) of the Horsforth Urban District Council Tramways Order 1903 shall apply mutatis mutandis to the said Tramway No. 6 and to White Bridge over which the said tramway is authorised to be constructed as though that bridge was mentioned in the said section instead of the bridges crossing Cow Beck and Gill Beck and with the substitution of "the Corporation" for "the promoters":
- (11) All surplus paving metalling or material excavated from the said road by the Corporation and not required in the construction of the tramway or in the execution of any work by this section required to be done by the Corporation shall remain the property of the county council for repair of main roads and shall be deposited by the Corporation at such place in the district within a reasonable distance (not exceeding one mile) from the place of excavation as the surveyor of the district council may direct:
- (12) If any difference arises between the Corporation and the county council under this section such difference shall unless otherwise agreed be determined by the Board of Trade or if the Board think fit by an arbitrator appointed by the Board and the provisions of the Arbitration Act 1889 shall apply for the purposes of the determination of such difference by an arbitrator appointed by the Board.

**10.** The following provisions for the protection of the Middleton Estate and Colliery Company Limited (in this section called "the company") shall except so far as may be otherwise agreed between the company and the Corporation apply and have effect (that is to say):—

For protection of Middleton Estate and Colliery Company Limited.

Nothing contained in this Act shall take away prejudice alter or affect any rights or powers vested in the company to use their private railway or wagonway for



A.D. 1914.

running trains upon the level crossing which at present exists over Moor Road in the city or to close the existing gates at each side of the said level crossing.

Additional  
trolley vehi-  
cle routes.

**11.**—(1) As from the passing of this Act the Act of 1910 shall as amended by this Act apply and have effect as if the following routes were therein mentioned in addition to the route described in section 4 (Power to provide and work omnibuses moved by electricity) of that Act:—

Route No. 1 Situate in the city commencing at the existing tramway at the junction of Wellington Road and Tong Road proceeding along Copley Hill Wortley Lane Mill Green Sydenham Street Domestic Street Holbeck Moor Road Lane End Place Hunslet Hall Road Moor Road and Church Street and terminating at the existing tramway in Low Road at its junction with Church Street:

Route No. 2 Situate in the urban district of Otley and in the townships of Hawksworth and Menston in the rural district of Wharfedale commencing at the termination of Tramway No. 8 authorised by this Act at the junction of the Bradford Road and Otley Road proceeding along the Otley Road Westgate Beech Hill Kirkgate Market Place and Boroughgate and terminating opposite to Garnett Street at the junction of Boroughgate and Cross Green:

Route No. 3 Situate in the urban district of Burley-in-Wharfedale and in the said township of Menston commencing at the intersection of Burley Road and Otley Road proceeding along Burley Road and Main Street (Burley-in-Wharfedale) and terminating 40 yards west of the centre of Peel Place.

(2) Provided that trolley vehicles shall not be used in Mill Green until the Corporation have executed Street Works Nos. 2 and 3 authorised by this Act.

For protec-  
tion of  
Otley and  
Ilkley Joint  
Line Com-  
mittee.

**12.** The provisions of section 11 (For protection of railway companies) of the Act of 1910 shall apply to the Otley and Ilkley Joint Line Committee in relation to the exercise of the powers of this Part of this Act as if that committee had been one of the companies named in that section.

For further  
protection of  
West Riding  
County  
Council.

**13.** The following provisions for the protection of the county council of the West Riding of Yorkshire (in this section called “the county council”) shall notwithstanding anything in this



Act and unless otherwise agreed in writing apply and have effect with respect to the use of the trolley vehicles on any main road maintained by or at the expense of the county council (that is to say):—

A.D. 1914.  
—

- (1) The county council may require that at the commencement and termini of the trolley vehicle routes on any such main road the road shall be paved with granite or other sett paving for the full width of the carriage-way and for such length (not exceeding thirty feet) as the surveyor of the county council may reasonably require and in such case the Corporation shall carry out such paving:
- (2) The position of all posts and apparatus erected by the Corporation for the purpose of the trolley vehicle routes referred to in this Act shall be such as the county council may (subject in case of difference to determination by the Board of Trade or an arbitrator appointed by that Board as herein-after provided) reasonably approve Provided that—

(a) If before the erection of any such posts or apparatus the Corporation deliver to the county council a plan showing the proposed position thereof and the county council do not within fourteen days give notice to the Corporation of any objection the county council shall be taken to have agreed to the position of such posts and apparatus as shown by the said plan;

(b) If any post standard or other mechanical power work becomes owing to any road widening alteration or improvement or to the construction of any new road or otherwise in the opinion of the county council an obstruction the Corporation shall alter the position thereof in such manner as the county council direct but if the Corporation object to any such direction a difference shall be deemed to have arisen between them which shall be determined in manner provided by subsection (6) of this section:

- (3) If the Corporation in the execution of any works in or affecting any main road shall cause any damage injury or disturbance to such main road and shall fail to



A.D. 1914.  
—

properly make good all such damage injury or disturbance then it shall be lawful for the county council after reasonable notice to the Corporation of the alleged failure and of the works which they propose to execute to do all works necessary for making good all damage injury or disturbance and the Corporation shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:

- (4) The provisions of section 7 (For protection of West Riding County Council) of the Horsforth Urban District Council Tramways Order 1903 shall apply *mutatis mutandis* to the powers conferred by this Act with reference to the running of trolley vehicles and to any bridge forming part of any of the trolley vehicle routes referred to in this Act as though such bridges were mentioned in the said section instead of the bridges crossing Cow Beck and Gill Beck and with the substitution of "the Corporation" for "the promoters" and as though the trolley vehicles and the posts and apparatus to be erected in connexion therewith had been referred to in the said section in lieu of the tramway and the works in connexion therewith:
- (5) The provisions of section 28 of the Town Police Clauses Act 1847 with respect to the side of the road at which a carriage or other vehicle is to be kept when meeting or passing any other carriage or vehicle shall apply to the driver of a trolley car and for the purposes of this section the said provisions shall be read as though horses and other beasts of burden were included therein:
- (6) If any difference arises between the Corporation and the county council under this section such difference shall unless otherwise agreed be determined by the Board of Trade or if the Board think fit by an arbitrator appointed by the Board and the provisions of the Arbitration Act 1889 shall apply for the purposes of the determination of such difference by an arbitrator appointed by the Board.



**14.** Section 48 (Power to local authority to license drivers conductors &c.) of the Tramways Act 1870 shall apply to the drivers and conductors of all trolley vehicles used in pursuance of this Act in districts outside the city except to the drivers and conductors who are also employed by the Corporation in connexion with trolley vehicles in the city.

A.D. 1914.

Licensing  
of drivers  
and conduc-  
tors.

**15.**—(1) For the purposes of this section—

As to road  
mainten-  
ance.

(a) The expression “road authority” shall mean—

(i) in the case of main roads the county council ;

(ii) in the case of roads repairable by any company or person such company or person :

(b) the expression “extra expense” shall mean the amount (if any) by which the actual cost of repairing a road shall exceed the amount which would have been the cost of repairing and maintaining such road up to the standard required by the ordinary traffic thereon if trolley vehicles had not been run thereon in exercise of the powers of this Act.

(2) If and so long as the Corporation run trolley vehicles under the powers of this Act along Route No. 2 and Route No. 3 or either of them they shall make the following payments to the road authorities:—

(a) Until the expiration of the period of three years from the thirty-first day of March after the date upon which the Corporation shall commence to run trolley vehicles along the said routes or either of them the sum of .375 of a penny per car mile run on the roads within the jurisdiction of the respective road authorities :

(b) After the expiration of the said period such sums as may be agreed or as failing agreement shall be determined by arbitration to be equal to the extra expense to be incurred in repairing the roads within the jurisdiction of the respective road authorities.

(3) Provided that if before the expiration of the said period of three years the Corporation shall give notice to any road authority of their intention to substitute tramways or light railways for trolley vehicles along any part of the said routes within the jurisdiction of such authority and if within two years after the giving of such notice the Corporation shall



A.D. 1914.

construct the tramway or light railway therein referred to no payment shall be made under paragraph (b) of the last preceding subsection but the Corporation shall continue to make payment under paragraph (a) thereof during the continuance of the use of trolley vehicles.

(4) The Corporation shall keep proper records of the car miles run by their trolley vehicles and the road authorities shall have access thereto at all reasonable times and be at liberty to take copies thereof and extracts therefrom.

(5) The Corporation shall at all reasonable times have access to and be at liberty to inspect and to take copies of and extracts from the books and accounts of the road authorities (and in the case of a main road repairable by a district council the books and accounts of such council) relating to expenditure on maintenance and repair of the said roads.

(6) Nothing in this section contained shall debar the Corporation from at any time hereafter applying for the rescission or modification of the provisions herein contained if in view of future legislation the Corporation shall think fit so to do.

(7) Any difference which shall arise between the Corporation and any road authority under this section shall be referred to and determined by an engineer agreed upon by the parties in difference or appointed by the Board of Trade on the application of either such parties and the provisions of the Arbitration Act 1889 shall apply to any such reference.

Future purchase by local authorities.

**16.**—(1) If within six months after the expiration of a period of twenty-one years from the passing of this Act or within six months after the expiration of every subsequent period of seven years each of the district councils in whose districts Route No. 2 and Route No. 3 authorised by the section of this Act whereof the marginal note is "Additional trolley vehicle routes" are situate serve notice on the Corporation requiring the Corporation to sell to them the part of the undertaking authorised by this Act in relation to such routes (in this section called "the undertaking") as is situate within their district the Corporation shall accordingly sell to each district council such part respectively in accordance with the provisions of this section.

(2) The price of the whole undertaking to be paid to the Corporation by the said district councils shall be an amount equal to the fair market value of the undertaking as a going concern but without any allowance for compulsory purchase and



in case of difference as to such price between the Corporation and the said district councils the difference shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 the arbitrator being appointed by the Board of Trade. A.D. 1914.

(3) The proportion of the price of the undertaking to be paid by each district council shall be determined in default of agreement between the said district councils by arbitration as aforesaid and if the price of the whole undertaking is to be determined by arbitration as aforesaid then unless the parties otherwise agree by the same arbitrator.

(4) The provisions of the Tramways Act 1870 relative to the leasing of tramways the payment of expenses the borrowing of money and the transfer of rights powers and authorities shall apply with the necessary modifications as if the said undertaking were tramways purchased by the said district councils in pursuance of that Act.

**17.** Nothing in the Act of 1910 or in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as carriages or light locomotives or hackney carriages. Duties on licences for trolley vehicles.

**18.—**(1) The provisions of section 99 (Agreements as to working of tramways) of the Consolidation Act 1905 shall so far as applicable and with all necessary modifications extend and apply to any trolley vehicle system which connects or can be worked in conjunction with any tramway or trolley vehicle system of the Corporation and for the purpose of that section a tramway shall include a trolley vehicle system. Agreements as to working trolley vehicle systems.

(2) Provided that for the purpose of calculating the maximum fares rates and charges any trolley vehicle system leased worked or run over under the provisions of this section shall be deemed to be one undertaking with the undertaking of the Corporation.

**19.—**(1) The Corporation may provide and maintain but shall not manufacture omnibuses and may run the same within the city demanding and taking reasonable fares and charges for the conveyance of passengers therein not exceeding the fares authorised by subsection (9) of this section. Power to provide and run omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands



A.D. 1914. — acquired by them for or which they are authorised to appropriate and use for the purposes of this section or of their tramways undertaking omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment maintenance running and equipment of such omnibuses but the Corporation shall not create or permit any nuisance on any such lands.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon their omnibuses Provided that any such byelaw shall be made subject and according to the provisions of sections 46 and 47 of the Tramways Act 1870 and those provisions shall apply accordingly.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) No omnibus authorised by this section shall exceed in weight (including the weight of its load) six and a half tons.

(6) The omnibuses authorised by this section shall not be used for the carriage of animals or minerals or goods other than parcels not exceeding fifty-six pounds in weight and other than personal luggage carried by passengers.

(7) The Corporation shall perform in respect of the omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

(8) In this section the expression "omnibus" means any stage carriage moved by mechanical power including in that expression steam electrical and every other motive power not being animal power.

(9) The undertaking authorised by this section shall be deemed to form part of the tramways undertaking of the Corporation and the following provisions of the Consolidation Act 1905 shall extend and apply to and for the purposes of this section as if those provisions were with all necessary modifications re-enacted in this Part of this Act Provided that in the application of such provisions the same shall be read and have effect as if omnibuses were carriages used on the Corporation tramways.



The provisions herein-before referred to are—

A.D. 1914.

Section 81 (Rates for passengers);

Section 89 (Corporation may appoint stopping and starting places);

Section 90 (Tramway waiting rooms);

Section 93 (Lost property);

Section 94 (Penalty for malicious damage); and

Section 97 (Expenses and receipts under Part IV. of Act).

(10) The Corporation shall not under the provisions of this section exercise the powers of the said sections 89 and 90 so as to interfere with or render less convenient the access to or exit from any station of any railway company or committee except with the consent in writing of that company or committee and any difference arising under this subsection between the Corporation and such company or committee shall be referred to and determined by an arbitrator to be agreed upon by both parties or failing such agreement to be appointed by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference.

**20.** For the protection of the North Eastern Railway Company and the North Eastern and London and North Western Railway Companies (in this section jointly and severally called “the railway companies”) the following provisions shall unless otherwise agreed between the Corporation and the railway companies be observed and have effect (that is to say):—

For protection of North Eastern Railway Company and North Eastern and London and North Western Railway Companies.

(1) The Corporation shall so construct maintain and use the tramways under or upon any bridge tunnel or culvert belonging to or maintainable by the railway companies (in this section referred to as “the bridge”) as not injuriously to affect the same and in the event of any injury or damage being caused to the bridge by the construction maintenance or user of the tramways the Corporation shall at their own expense and to the reasonable satisfaction of the railway companies make good and restore the same and if in consequence of any such injury or damage it becomes or if the construction of the tramways or the maintenance or user thereof will render it necessary that the bridge should be rebuilt or strengthened the railway companies shall



A.D. 1914.  

---

give to the Corporation notice accompanied by sufficient plans and specifications of the intended works and may after twenty-eight days from the date of the notice (or forthwith in the case of emergency) proceed with all due despatch to execute all such works as may be reasonably necessary and the railway companies may recover from the Corporation all moneys reasonably expended by them in the execution thereof :

If in the construction of Tramway No. 4 it shall be necessary for the Corporation to alter the level of Swinegate they shall then make such alterations to the reasonable satisfaction of the railway companies as may become necessary in the levels of the streets connecting therewith and to the property of the railway companies connected with Swinegate and with such streets (Swinegate and the streets connecting therewith being herein-after referred to as "the said streets" and the property of the railway companies as "the railway property") so as not to affect or damage the railway property :

- (2) The Corporation shall give to the railway companies twenty-eight days' notice in writing of the intention to commence any works under or upon or which may affect or interfere with the bridge or the said streets or the railway property and shall at the same time send sufficient plans sections specifications and other information to show the nature of such works and such works shall be constructed and thereafter maintained according to the plans sections and specifications and under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the railway companies :

Provided that the Corporation shall not commence any such works until such plans sections and specifications have been approved by the railway companies or in case of difference between the railway companies and the Corporation by an arbitrator to be appointed as herein-after provided :

- (3) Any works under this section save only the laying and forming the track of the tramways and erecting and connecting the necessary overhead equipment and



other works incidental thereto in so far as they may affect or interfere with the bridge or the railway property shall if the railway companies so require be executed by them at the reasonable expense of the Corporation: A.D. 1914.

If the railway companies intend so to execute such works they shall give to the Corporation notice of their intention and shall commence execute and complete the said works with all reasonable despatch:

Provided that unless the railway companies give the said notice to the Corporation within twenty-eight days after receiving from the Corporation the notice herein-before prescribed the Corporation may in accordance with such plans sections and specifications and under such superintendence as aforesaid themselves proceed to execute the works:

- (4) If the railway companies shall hereafter in the exercise of their existing powers require to widen lengthen strengthen reconstruct alter or repair the bridge or the approaches thereto or to widen or alter any railway thereunder or to lift or support the bridge or to alter the railway property the Corporation shall afford to the railway company all reasonable and proper facilities for those purposes or any of them and if the railway companies find it necessary for the purposes of this section that the working or user of any portion of the tramways upon such bridge or approaches be wholly or in part temporarily stopped or delayed or that such portion of the tramways be wholly or in part temporarily taken up or removed and if the railway companies accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such portion of the tramways shall be stopped or delayed or such portion of the tramways shall be taken up or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and such portion



A.D. 1914.  
—

of the tramways shall be restored with all possible despatch and in such case the railway companies shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid:

- (5) The Corporation shall not in any manner in the execution maintenance or user or repair of any of their works obstruct or interfere with the free uninterrupted or safe user of any railway or other work belonging to the railway companies or any traffic thereon:
- (6) The Corporation shall be responsible for and make good to the railway companies all losses damages and expenses which may be occasioned to the railway companies by or by reason of the execution or failure of any of the intended works or by reason of any act or omission of the Corporation or their contractors or of any person in the employ of either of them and the Corporation shall effectually indemnify the railway companies from all claims and demands upon or against them by reason of such execution or failure or of any such act or omission:
- (7) The Corporation shall on demand pay to the railway companies the reasonable expense of the employment by the railway companies during the execution or repair by the Corporation under this Act of any work affecting any bridge railway or other work belonging to the railway companies of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway companies for preventing all interference obstruction danger and accident from any of the operations acts or defaults of the Corporation or their contractors or of any person in the employ of either of them:
- (8) If having regard to the relative position of the works of the Corporation and the works of the railway companies at any point where the tramways will be constructed over or under the railways of the railway companies it becomes advisable that the electric telegraphic telephonic or signal wires or apparatus of the railway companies shall be altered the railway companies may execute any works reasonably necessary for such alterations and the reasonable expense of executing such works shall be borne by the Corporation:



(9) Any additional expense in the alteration repair rebuilding or maintenance of any bridge or other work occasioned to the railway companies by the construction or maintenance of the tramways shall be borne by the Corporation : A.D. 1914.

(10) If any difference arises under this section between the Corporation and the railway companies that difference shall unless otherwise agreed be referred to the Board of Trade for their determination or at the option of that Board to the arbitration of a person nominated by that Board.

#### PART IV.

##### FURTHER PROVISIONS AS TO LANDS AND WORKS.

**21.** Subject to the provisions and for the purposes of this Act (including the providing of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

**22.** The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act. Period for compulsory purchase of lands.

**23.—(1)** The Corporation during the execution and for the purposes of any works authorised by this Act may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or returning from any such house.

(3) Provided that at all times during the execution of any such work the Corporation shall maintain a proper and sufficient access both for vehicular and pedestrian traffic to the passenger and goods stations of the Lancashire and Yorkshire Railway Company of the North Eastern Railway Company and of the North Eastern and London and North Western Railway Companies near to which any such work is being executed.



A.D. 1914.

## PART V.

## FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to  
borrow.

24.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

| 1.                                                                                                                                                                                                                  | 2.                 | 3.                                                |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|---------------------------------------------------|
| Purpose.                                                                                                                                                                                                            | Amount.            | Period.                                           |
|                                                                                                                                                                                                                     | £                  |                                                   |
| (a) For the purchase of lands for the street improvements authorised by this Act.                                                                                                                                   | The sum requisite. | Sixty years from the date or dates of borrowing.  |
| (b) For the construction of the said street improvements.                                                                                                                                                           | 2,702              | Fifty years from the date or dates of borrowing.  |
| (c) For the construction of the tramways authorised by this Act and other purposes of the tramways undertaking of the Corporation other than the provision of motor omnibuses.                                      | 60,012             | Thirty years from the date or dates of borrowing. |
| (d) For the provision of the trolley vehicles authorised by this Act.                                                                                                                                               | 12,000             | Ten years from the date or dates of borrowing.    |
| (e) For the provision of the electrical equipment and the construction of the other works necessary for the tramways and trolley vehicles authorised by this Act.                                                   | 28,562             | Twenty years from the date or dates of borrowing. |
| (f) For the purchase of land for and the erection of a sub-station and dépôt for the purposes of the tramways and trolley vehicles of the Corporation and the provision of plant and cables in connexion therewith. | 42,636             | Forty years from the date or dates of borrowing.  |
| (g) For paying the costs charges and expenses of this Act.                                                                                                                                                          | The sum requisite. | Five years from the passing of this Act.          |

(2) (a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part III. (Tramways trolley vehicles and omnibuses) of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that Part:



(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed. A.D. 1914.

**25.**—(1) The moneys authorised to be borrowed under the provisions of this Act shall be and the same are hereby declared to be principal moneys within the meaning of the General Powers Act 1901 and the Consolidation Act 1905 and the provisions of those Acts with respect to principal moneys the borrowing or raising of money and the payment off of borrowed money shall subject to the provisions of this Act apply accordingly. Moneys borrowed to be principal moneys within meaning of Acts of 1901 and 1905.

(2) The yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of the last preceding section of this Act shall—

As regards moneys borrowed for the purposes (a) (b) (c) (d) (e) and (f) mentioned in the said section and moneys borrowed with the consent of the Board of Trade be defrayed as expenses of the tramways undertaking of the Corporation on revenue account in accordance with section 97 of the Consolidation Act 1905;

As regards moneys borrowed for the purposes (g) mentioned in the said section be defrayed in such proportions as the council may by resolution determine as expenses of the water and tramways undertakings of the Corporation on revenue account and as expenses payable out of the city fund;

As regards moneys borrowed with the consent of the Local Government Board be defrayed out of such fund or revenue as may be prescribed by that Board.

**26.** Notwithstanding anything contained in the Municipal Corporations Act 1882 any money which may hereafter be borrowed by the Corporation in pursuance of that Act or of any Act to which the provisions of that Act relating to the borrowing of money are made applicable shall be repaid within such period not exceeding sixty years as the Local Government Board shall in each case prescribe. Period for repayment of loans under Municipal Corporations Act 1882.

**27.** The Corporation may if they think fit form a fund (to be called the “fidelity guarantee fund”) to provide for making good any loss which they or the guardians of the poor of any union wholly or partly comprised in the city or the Fidelity guarantee fund.



A.D. 1914. — overseers of any parish comprised in the city may sustain in consequence of the dishonesty of any person employed or appointed by the Corporation or the failure of any such person to perform faithfully the duties of his office and such fund shall be formed by annually appropriating thereto such sums out of any of the revenues of the Corporation which are properly chargeable with such sums as they from time to time deem expedient and such fund and the interest thereon (except to the extent from time to time required to make good any such loss as aforesaid or to defray any expenditure in consequence thereof) shall be invested in statutory securities.

Education  
accident  
fund.

**28.** The Corporation may if they think fit form a fund (to be called the "education accident fund") to provide for meeting claims that may be made upon them as the local education authority for the city in respect of any accident or injury occurring to any person employed by them or to any child or person attending the schools in the city and such fund shall be formed by annually appropriating thereto such sums out of the city fund as the Corporation from time to time deem expedient and such fund and the interest thereon (except to the extent from time to time required to meet any such claims as aforesaid or to defray any expenditure in consequence of any such accident or injury) shall be invested in statutory securities.

Application  
of provisions  
of Acts of  
1901 1905  
1908 and  
1913.

**29.** The following provisions of the General Powers Act 1901 the Consolidation Act 1905 the Act of 1908 and the Act of 1913 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

The General Powers Act 1901—

Section 11 (Provisions as to compensation):

The Consolidation Act 1905—

Section 153 (Power to retain sell &c. lands and to purchase lands by agreement):

The Act of 1908—

Section 7 (Correction of errors &c. in deposited plans and book of reference);

Section 9 (Owners may be required to sell parts only of certain lands and buildings);



Section 11 (Persons under disability may grant easements &c.); A.D. 1914.

Section 41 (Inquiries by Local Government Board);

Section 42 (Audit of accounts):

The Act of 1913—

Section 17 (Subsidiary works);

Section 18 (Power to alter steps areas pipes &c.);

Section 24 (Costs of arbitration in certain cases); and

Section 29 (Expenses of execution of Act):

Provided that—

(1) In the application of section 11 (Provisions as to compensation) of the General Powers Act 1901 that section shall be read and have effect as if the words “after the twentieth day of November one thousand nine hundred and thirteen” were substituted for the words “between the first day of January and the thirty-first day of December one thousand nine hundred and one”:

(2) In the application of section 9 (Owners may be required to sell parts only of certain lands and buildings) of the Act of 1908 that section shall be read and have effect as if the properties described in the schedule to this Act were therein referred to instead of the properties described in the Second Schedule to that Act.

**30.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or out of moneys to be borrowed under this Act for that purpose. Costs of Act.



A.D. 1914.

The SCHEDULE referred to in the foregoing Act.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

| No. of Street Work. | Township.            | Nos. on deposited Plans. |
|---------------------|----------------------|--------------------------|
| 1                   | Leeds - - -          | 19 20 21 22 and 26.      |
| 2                   | Armley and Bramley - | 1 2 3 4.                 |
| 3                   | Armley and Bramley - | 7 16 17 18 19.           |

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from  
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and  
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or  
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or  
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;  
or from the Agencies in the British Colonies and Dependencies,  
the United States of America, the Continent of Europe and Abroad of  
T. FISHER UNWIN, LONDON, W.C.